Title 19—DEPARTMENT OF HEALTH AND SENIOR SERVICES

Chapter 1—General

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19 CSR 100-1.010 Definitions

PURPOSE: This rule defines terms used in this chapter.

(1) The following terms mean: The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Facility means a licensed or certified cultivation, manufacturing, dispensary, testing, transportation or microbusiness facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(3) Batch means a specific quantity of marijuana or marijuana product produced at the same time using the same methods, equipment, and ingredients. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(4) Seed-to-sale tracking system means the statewide inventory tracking system used to track marijuana from seed or immature plant to final sale. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.020 Facility Licenses and Certifications

PURPOSE: This rule explains how facilities apply for and renew licenses.

(1) Applications. Each applicant shall submit a complete application through the department electronic portal, including the application fee and the ownership disclosure for every owner of the applicant. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Renewal. Licenses are renewed every three years. A renewal application shall be submitted no later than one hundred twenty days before the license expires. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(3) Change of ownership. A facility shall not transfer ownership without prior approval of the department. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.040 Denials, Revocations, Suspensions, and Penalties

PURPOSE: This rule describes enforcement actions.

(1) The department may deny, suspend or revoke a license for a violation of this chapter, as provided in 19 CSR 100-1.020 of this chapter and section 195.805. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that

the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Administrative penalties may be assessed for each violation of this chapter. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.090 Seed-to-Sale Tracking

PURPOSE: This rule describes inventory tracking requirements.

(1) Each facility shall record all inventory in the statewide tracking system within twenty-four hours of any change, including transfers, waste and destruction. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Each facility shall reconcile its physical inventory with the tracking system at least once each month and investigate any difference. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.100 Security Requirements

PURPOSE: This rule establishes facility security standards.

(1) Video surveillance. Each facility shall have cameras covering all limited access areas, entrances and exits, with recordings kept for at least sixty days. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Alarm system. Each facility shall maintain a professionally monitored alarm system with panic buttons. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(3) Limited access areas. Visitors shall sign the visitor log and be escorted at all times. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.120 Packaging and Labeling

PURPOSE: This rule establishes packaging and labeling requirements for products.

(1) Packaging. Marijuana products shall be sold in opaque, resealable, child-resistant packaging. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance

during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Labeling. Each label shall include the product name, the batch number, the potency, the date of manufacture and the required warning statements. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

AUTHORITY: Article XIV, Mo. Const. Original rule filed Jan. 1, 2023, effective March 1, 2023.

19 CSR 100-1.140 Testing Facilities

PURPOSE: This rule establishes requirements for testing facilities and sampling.

(1) Each batch shall be sampled by the testing facility and tested for potency, microbial contaminants, pesticides, heavy metals and residual solvents before transfer to a dispensary. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(A) The facility shall designate a responsible person for this section and record the designation.

(2) Samples shall be collected using the department sampling procedure and tracked in the seed-to-sale system. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

(3) A batch that fails testing shall be placed on hold and may be remediated or destroyed. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility. The facility shall keep written procedures for this requirement, train each employee who performs the work, and keep records of the work for at least three years so that the department can verify compliance during an inspection or investigation of the facility.

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